

Report of the
Town Clerk

To the Honorable Select Board and
The Citizens of the Town of Mashpee

It is my pleasure to submit to you, my friends, my annual report for 2023. With the approval of the Mashpee Select Board, my staff successfully moved the five voting precincts to three different locations within town. Precincts 1 and 2 moved into the Senior Center, with Precincts 3 and 4 moving into Town Hall, and Precinct 5 is located at the Mashpee Library.

At the October 16, 2023 Annual Town Meeting, the voters began voting on articles with hand-held clickers. The decision to utilize clickers was welcomed positively.

To my election workers, my wardens, and my Board of Registrars, I thank you for your professionalism, your friendship, and your fortitude as we successfully contended with three elections in three months' time.

Since 1998 when I first began as the Town Clerk, I had the good fortune to acquire many close friendships with the residents of Mashpee; however, with each passing year it becomes harder to say good-bye to so many of these wonderful souls. My staff

and I wish to convey our deepest sympathies to you and your family members if you lost a loved one last year. I understand the pain of losing a loved one, but eventually the painful moments turn into happy memories. They will be remembered in our hearts and our minds. Remember to live life to its fullest, love one and all, and laugh often.

My staff and I shall always continue to serve you, the residents of Mashpee, with a smile

Respectfully submitted,

Deborah Kaye
Town Clerk

2023 Births, Deaths, and Marriages

Over the years the Town Clerk's Office annually printed the names of those that filed their marriage intentions, were residents at the time of their death, or were born to residents of Mashpee. However, the Registry of Vital Records and Statistics has rendered the opinion "...that the problems in publishing this data outweigh any public benefits."

In 2023 the following vital records were registered in Mashpee:

Births – 96
Deaths – 258
Marriages – 97

2023 Town Clerk Revenue

In Calendar Year 2023 the Town Clerk's Office deposited \$912,450.00. The following is a breakdown of the revenue received.

Beach Stickers	\$ 137,433.00	Pole Locations	\$ 75.00
Business Certificates	\$ 5,560.00	Raffle Permits	\$ 215.00
Boat Ramp	\$ 2,570.00	Recycle Stickers	\$ 22,595.00
Burial Permits	\$ 820.00	Shellfish	\$ 27,571.00
Copies	\$ 11,597.00	Transfer Station Stickers	\$ 679,222.00
Dogs	\$ 10,052.00	Underground Storage	\$ 275.00
Marriages	\$ 2,350.00	Violations	\$ 1,965.00
Passport	\$ 7,515.00	Total	\$ 912,450.00
Passport Pictures	\$ 2,635.00		

Annual Town Election - Official Results

May 6, 2023

	Precinct 1	Precinct 2	Precinct 3	Precinct 4	Precinct 5	TOTAL
Total Voters By Precinct	2,467	2,274	2,331	2,443	3,143	12,658
Total Turnout By Precinct	291	162	172	214	352	1191
Percentage of Turnout by Precinct	12%	7%	7%	9%	11%	9%
Housing Authority Vote for 1 - 5 Years						
Kevin Shackett	165	95	84	115	182	641
Mohamad Fahd	120	63	82	93	159	517
Write-Ins	0	0	0	0	0	0
Blanks	6	4	6	6	11	33
Total	291	162	172	214	352	1191
Library Trustees Vote for 3 - 3 Years						
Sandra Lahart	233	115	131	156	258	893
Bethany Geatrakas	236	111	128	145	261	881
Ruth Nickerson	242	121	137	158	265	923
Write-Ins	0	0	1	1	0	2
Blanks	162	139	119	182	272	874
Total	873	486	516	642	1056	3573
Planning Board Vote for 1 - 3 Years						
Dale Oakley, Jr.	248	122	141	173	269	953
Write-Ins	0	0	2	1	1	4
Blanks	43	40	29	40	82	234
Total	291	162	172	214	352	1191
School Committee Vote for 2 - 3 Years						
Catherine A. Lewis	240	120	135	154	264	913
Daniel Rodrigues	222	110	124	139	244	839
Write-Ins	4	1	0	4	0	9
Blanks	116	93	85	131	196	621
Total	582	324	344	428	704	2382
Board of Selectmen Vote for 2 - 3 Years						
David W. Weeden	237	120	136	165	244	902
Michaela Wyman-Colombo	244	119	126	154	276	919
Write-Ins	4	2	3	7	8	24
Blanks	97	83	79	102	176	537
Total	582	324	344	428	704	2382
Town Clerk Vote for 1 - 3 Years						
Deborah F. Kaye	255	135	142	178	304	1014
Write-Ins	0	1	2	0	0	3
Blanks	36	26	28	36	48	174
Total	291	162	172	214	352	1191
Water Commissioner Vote for 1 - 3 Years						
Kenneth Marsters	242	113	134	155	276	920
Write-Ins	3	2	2	6	0	13
Blanks	46	47	36	53	76	258
Total	291	162	172	214	352	1191
Question 1 Wastewater Plant & Treatment System						
Yes	238	117	131	156	282	924
No	46	39	38	44	60	227
Blanks	7	6	3	14	10	40
Total	291	162	172	214	352	1191
Question 2 Proposition 2 1/2 Override						
Yes	211	106	119	139	235	810
No	72	50	50	60	106	338
Blanks	8	6	3	15	11	43
Total	291	162	172	214	352	1191

Article 31

To see if the Town will vote to amend §174-31, Land Space Requirements Table by referencing footnote 15 in the Minimum Lot Frontage column title and adding new footnote 15 to read as follows:

¹⁵ Minimum lot frontage required for the development of solar energy systems shall be twenty-five (25) feet.

Submitted by the Planning Board

Explanation: This article would allow the development of solar energy systems on lots that have a minimum of twenty-five (25) feet by amending the footnotes of the Land Space Requirements table in the Zoning Bylaw. Lot frontage of 150 feet is the minimum requirement for other uses in the Town. The Town may consider reducing frontage to encourage solar energy on otherwise unbuildable lots. Solar Energy systems require only one access driveway for maintenance. This article requires a 2/3 vote.

The Select Board recommends approval of Article 31 by a vote of 5-0

The Finance Committee recommends approval of Article 31 by a vote of 5-0

The Planning Board recommends approval of Article 31 by a vote 3-1

Motion made by Select Board Member Wyman-Colombo

Motion: I move the Town vote to approve Article 31 as printed in the warrant.

Motion passes at 8:24 PM

Article 32

To see if the Town will vote to add new section 174-45.7: Solar Energy Systems to the Mashpee Zoning Bylaws as follows:

Solar Energy Systems

A. Purpose and Intent

This section promotes the creation of new small, medium and large-scale, ground-mounted solar energy systems by providing standards for the placement, design, construction, operation, monitoring, modification

and removal of such installations that address public safety, minimize impacts on scenic, natural and historic resources and for providing adequate financial assurance for the eventual decommissioning of such installations. This bylaw is adopted pursuant to the Commonwealth of Massachusetts Green Communities Act and Massachusetts General Laws Chapter 40A Section 3.

B. General Provisions

1. Small scale ground mounted solar energy systems and roof mounted solar energy systems shall be considered an accessory use allowed as-of-right in the R-3, R-5, C-1, C-2, C-3, and I-1 districts. In issuing a building permit for such a system, the Building Inspector shall ensure that neighboring properties are effectively protected from any adverse impacts arising from glare.
2. Any medium or large-scale solar energy system shall be allowed in the C-1 and C-2 Zoning Districts only after the issuance of a Special Permit by the Planning Board. In issuing such Special Permit, the Board shall ensure that neighboring properties are effectively protected from any significant adverse impacts arising from glare, that any such systems are properly fenced or otherwise secured, and that no hazardous materials are stored in quantities greater than permitted by other sections of this bylaw.
3. Any medium or large-scale solar energy system in the I-1 Industrial Zoning District shall be allowed after review and approval by the Plan Review Committee.
4. The construction and operation of all ground-mounted solar energy systems shall be consistent with all applicable local, state and federal requirements, including but not limited to all applicable safety, construction, electrical, and communications requirements. All buildings and fixtures constituting part of a ground-mounted solar energy system shall be constructed in accordance with all applicable requirements of the Massachusetts State Building Code.
5. The solar energy system's owner or operator shall maintain system facilities in good condition. Maintenance shall include, but not be limited to, painting, structural repairs, and integrity of security measures. Site access shall be maintained to a level acceptable to the Town's Fire Chief and Emergency Management Director. The owner or operator shall be responsible for the cost of maintaining the ground-mounted solar energy system and any related access road(s).

D. A “Direct Abutter” shall be defined as any resident or homeowner within 300 feet of Santuit Pond. Said resident or homeowner shall receive a pass from the Department of Natural Resources’ Harbormaster Division to operate outside of the above horsepower restrictions for a 1 year period after regulatory approval,

or take any other action relating thereto.

Submitted by Petition
(Lead Petitioner-Matthew Jalowy)

Explanation: Santuit Pond’s depth is under 11 feet throughout, with an average depth of only 6.5 feet. Due to its shallowness and elevated phosphorus levels, the Pond cannot support motors of more than 10 horsepower. Through the Municipal Vulnerability Preparedness Program and the completion of a Watershed Management Plan, our experts from Fuss & O’Neil and The Southeast New England Partnership Program recommend this horsepower restriction for Santuit Pond to improve water quality and reduce shoreline erosion. This is one important change necessary for the Pond’s long term health.

The Select Board takes no position on Article 42 by a vote of 5-0

The Finance Committee recommends approval of Article 42 by a vote of 5-0

Motion made by the petitioner Matthew Jalowy

Motion: I move the Town vote to indefinitely postpone Article 42

Motion to indefinitely postpone passes unanimously at 9:02 PM

Article 43

To see if the Town will vote to amend §174-25 (H) (12) of the Mashpee Zoning Bylaw Table of Use Regulations by replacing §174-25 (H) (12) in its entirety with the following:

Type of Use		Residential		Commercial			Industrial
		R-3	R-5	C-1	C-2	C-3	I-1
(12)	Medium-scale and Large-scale ground mounted solar energy systems subject to the provisions of §174-45.7: Solar Energy Systems	---	---	SP	SP	---	PR

Submitted by Petition
(Lead Petitioner-B. Lynne Barbee)

Explanation: This article would allow the development of medium- and large-scale ground mounted solar energy systems in the commercial (C-1) and (C-2) zoning districts with a Special Permit (SP) from the Planning Board and in the industrial (I-1) zoning district by approval of Site Plan Review per the standards for the placement, design, construction, operation, monitoring, modification, and removal of such installations as set by §174-45.7: Solar Energy Systems of the Mashpee Zoning Bylaws. This article requires a 2/3 vote.

The Select Board takes no position on Article 43 by a vote of 5-0

The Finance Committee recommends approval of Article 43 by a vote of 5-0

The Planning Board recommends approval of Article 43 by a vote 3-1

Motion made by the petitioner B. Lynne Barbee

Motion: I move the Town vote to indefinitely postpone Article 43

Motion to indefinitely postpone passes unanimously at 9:03 PM

Article 44

To see if the Town will vote to add new section 174-45.7: Solar Energy Systems to the Mashpee Zoning Bylaws as follows:

- proposed array and neighboring properties and roadways
- b. Berms along property lines and roadways with suitable plantings to provide adequate screening to neighboring properties and roadways.
 3. Lighting – Lighting of ground-mounted solar energy systems shall be limited to that required for safety and operational purposes, and shall be reasonably shielded from abutting properties. Lighting shall be directed downward and shall incorporate full cut-off fixtures to reduce light pollution.
 4. Signage – Signs on ground-mounted solar energy systems shall comply with all applicable regulations of this bylaw and/or any Town sign bylaw. A sign shall be required to identify the owner, operator and interconnected utility and provide a 24-hour emergency contact phone number. Ground-mounted solar energy systems shall not be used for displaying any advertising signage.
 5. Utility Connections – Within setback distances and except where soil conditions, location, property shape, and topography of the site or requirements of the utility provider prevent it, all utility connections from grid-intertie solar energy systems shall be placed underground. Electrical transformers for utility interconnections may be above ground if required by the utility provider.
 6. Vegetation Management – All land associated with the ground-mounted solar energy system shall be covered and grown in natural vegetation. The height of vegetation must be managed by regular mowing or grazing so as to minimize the amount and height of combustible material available in case of fire. Herbicides, pesticides, or chemical fertilizers shall not be used to manage vegetation. To the greatest extent practicable, a diversity of plant species shall be used, with preference given to species that are native to New England. Use of plants identified by the most recent copy of the “Massachusetts Prohibited Plant List” maintained by the Massachusetts Department of Agricultural Resources is prohibited. Management of all vegetated areas shall be maintained throughout the duration of the solar energy system’s installation through mechanical means without the use of chemical herbicides.
 7. Noise Generation – Noise generated by ground-mounted solar energy systems and associated equipment and machinery shall conform to applicable state and local noise regulations, including the DEP’s Division of Air Quality noise regulations, 310 CMR 7.10.
 8. Fencing – Fencing around solar arrays shall provide 6 inches of clearance between the fence bottom and the ground to allow passage of small wildlife. Clearance shall not exceed 6 inches unless otherwise approved by the Planning Board in its written decision for good cause. Residential style fencing is necessary to screen the solar energy systems year round from adjacent residences.
 9. Land Clearing and Soil Erosion – Clearing of natural vegetation and topsoil shall be limited to what is necessary for the construction, operation and maintenance of the ground-mounted solar energy system. No topsoil removed during construction shall be exported from the site.
 10. Erosion Control and Stormwater – Erosion Control and Stormwater Management notation shall be included to show that adequate provisions against erosion and adverse impacts of runoff are appropriately mitigated.
 11. Emergency Services – The ground-mounted solar energy system owner or operator shall provide a copy of the project summary, electrical schematic, and site plan to the Mashpee Fire Department, and any other neighboring Fire Department upon request. Upon request the owner or operator shall cooperate with local emergency services in developing an emergency response plan. All means of shutting down the solar energy system shall be clearly marked. The owner or operator shall identify a responsible person for public inquiries throughout the life of the installation.

Submitted by Petition
(Lead Petitioner-B. Lynne Barbee)

Explanation: This section promotes the creation of new small, medium and large-scale, ground-mounted solar energy systems by providing standards for the placement, design, construction, operation, monitoring, modification and removal of such installations that address public safety, minimize impacts on scenic, natural and historic resources and for providing adequate financial assurance for the eventual decommissioning of such installations. This article requires a 2/3 vote.

The Select Board takes no position on Article 44 by a vote of 5-0

Million Dollars (\$3,000,000) be transferred from revenue available for appropriation (Free Cash) and the Treasurer, with the approval of the Select Board, be authorized to borrow the amount of Four Million Five Hundred Thousand Dollars (\$4,500,000) under M.G.L. Chapter 44, sections 7 and/or 8 or any other enabling authority and to issue such bonds or notes as may be necessary for such purpose; provided, however, that this debt authorization shall be contingent upon passage of a Proposition 2¹/₂, so-called, debt exclusion ballot question exempting from the provisions of said Proposition 2¹/₂ the amounts required to pay the principal and interest on bonds, notes or certificates of indebtedness issued for this purpose pursuant to General Laws Chapter 59, §21C(k).

Motion passes 512 to 65 at 7:44PM

Motion made by Select Board Member Cotton:

I move that the Town vote to dispense with the reading of the Annual Town Meeting warrant articles.

Article 2

To see if the Town will vote to amend the Zoning Bylaws by adding the following new subsections into Article XI: Floodplain Zone Overlay as follows:

§174-67 Prohibitions

The purpose of this section is to encourage use of more resilient, safer, and more environmentally beneficial construction methods in the Floodplain Zone Overlay District. It is not intended to otherwise restrict or prevent construction of a new or redeveloped dwelling or other allowable structure.

No person shall fill, place or dump in any flood hazard area within the Floodplain Zone Overlay District any soil, loam, peat, sand, gravel, rock or other material substance, refuse, trash, rubbish, debris or dredged material for the purposes of raising their first floor elevation to be at or above the base flood elevation. Solid wall foundations with flood vents or pilings are the only acceptable construction methods within the Floodplain Zone Overlay District.

No Letters of Map Revision based on Fill (LOMR-Fs) or Letters of Map Amendment

Based on Fill (LOMA-F) will be permitted. Conventional Title V Septic System technologies shall not be permitted within the Floodplain Zone Overlay District and a Board of Health approved Innovative/Alternative septic system is required pursuant to Board of Health Regulations.

§174-67.1 Exceptions to Prohibitions of the Use of Fill in Any Flood Zone

Landscape material up to two feet in depth at the foundation and tapered to meet grade within ten feet (10) of the foundation shall not be calculated towards grade plane and shall not be considered fill as regulated in §174-67 of this Bylaw.

The use of rock for the purposes of reconstructing a revetment or groin shall not be considered fill as regulated by §174-67 of this Bylaw. The reconstruction of such structures shall require all permits and approvals required by applicable local, state, and/or federal laws.

The use of dredged material for beach re-nourishment shall not be considered fill as regulated in §174-67 of this Bylaw but shall require all permits as required by applicable local, state, and/or federal laws.

Any material: soil, loam, peat, sand, gravel, rock or other material substance required for the installation of a Board of Health approved Innovative/Alternative Septic System shall not be considered fill as regulation in §174-67 of this Bylaw.

Submitted by the Planning Board

Explanation: This article would require new construction or redevelopment of homes in the Floodplain Zone Overlay District utilize either a solid-wall foundation with flood vents or pilings for new homes or redeveloped homes. Further it requires that properties touched by the Floodplain install Innovative/Alternative septic systems unless served by a public or private wastewater treatment facility. This Bylaw does not propose to remove the rights of any property owner to build or re-build a new dwelling on lots in the Floodplain Zone Overlay District. If your lot is buildable today, it will remain buildable following the passage of this Article. This article requires a 2/3 vote.